

ONE HUNDRED NINTH LEGISLATURE

SECOND SESSION

LEGISLATIVE RESOLUTION 413

Introduced by DeBoer, 10; Rountree, 3.

PURPOSE: The purpose of this resolution is to propose an interim study to examine Nebraska statutes and processes relating to guardianship.

The study shall include, but not be limited to, an examination of the following:

(1) The information provided to judges before granting a full or limited guardianship and whether such information is provided in a timely manner and contains sufficient information to make such determination;

(2) Best practices for guardianship, including, but not limited to, the Uniform Guardianship, Conservatorship, and Other Protective Arrangements Act and other model legislation which offer multi-agency involvement in guardianship cases;

(3) Recruitment of volunteer guardians and the support provided to such guardians before and during their guardianship;

(4) Resources needed by individuals under guardianship in Nebraska and whether there are sufficient resources to provide the least restrictive alternative to these individuals as is the intention of current statute; and

(5) Other issues relating to the rights of the individual under guardianship and availability of guardians in Nebraska.

NOW, THEREFORE, BE IT RESOLVED BY THE MEMBERS OF THE ONE HUNDRED NINTH LEGISLATURE OF NEBRASKA, SECOND SESSION:

1. That the Judiciary Committee of the Legislature shall be designated to conduct an interim study to carry out the purposes of this resolution.

2. That the committee shall upon the conclusion of its study make a report of its findings, together with its recommendations, to the Legislative Council or Legislature.